REPORTABLE (15)

HEART AND SOUL BROADCASTING SERVICES (PRIVATE) LIMITED
v
(1) MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS (2) MINISTER INFORMATION AND BROADCASTING SERVICES (3) THE ATTORNEY GENERAL'S OFFICE (4) THE PROSECUTOR GENERAL

CONSTITUTIONAL COURT OF ZIMBABWE
GARWE JCC, GOWORA JCC & HLATSHWAYO JCC
HARARE, 07 OCTOBER 2025 & 29 JULY 2026

B. Mtetwa with *R. Sitotombe*, for the applicant
M. Chimombe, for the first to third respondent
N. Mutsonziwa with *C. Muchemwa*, for the fourth respondent

HLATSHWAYO JCC:

This is an application for direct access in terms of s 167 (5) of the Constitution as read together with r 26 of the Constitutional Court Rules. If this application is granted, the applicant intends to bring a constitutional cause under s 85(1) (a) of the Constitution as read together with r 27 of the Constitutional Court Rules. It will contend that its rights under ss 56 and 69(3) of the Constitution were infringed when the Magistrate's Court declined its request for a referral in terms of s 175(4) of the Constitution.

BACKGROUND FACTS

The applicant is a media house which provides internet-based broadcasting services. It is also a subsidiary of Alpha Media Holdings Limited, an independent media group. The first respondent is the Minister of Justice, Legal and Parliamentary Affairs, cited in his official capacity as the government official responsible for administering the Criminal Law (Codification and Reform) Act [*Chapter 09:23*] ("the Criminal Law Code"). The second respondent is the Minister of Information, Publicity and Broadcasting Services, cited herein in his official ministerial capacity as the government official who is administratively responsible for the welfare and class interests of members of the press in Zimbabwe. The third respondent is the Attorney General of Zimbabwe, cited herein as the principal legal advisor of the Government of Zimbabwe. The fourth respondent is the Prosecutor General, who is conducting the prosecution of the applicant for allegedly contravening s 164 of the Criminal Law Code.

The present matter arises from the Magistrate's Court's refusal to refer to this Court a constitutional issue that had arisen during criminal proceedings against the applicant. The applicant contends that the Magistrate's refusal to make the referral to this Court in terms of s 175(4) of the Constitution has infringed two of its rights under Chapter 4 of the Constitution. Specifically, the applicant alleges that this refusal violated its rights protected by ss 56(1) and 69(3) of the Constitution.

The events leading to this application are as follows: On 27 January 2025, the applicant, as part of its business of disseminating information to the public, attended a press conference

addressed by one Blessed Runesu Geza, a veteran of Zimbabwe's War of Liberation. One of the applicant's journalists, Blessed Mhlanga, was arrested on the 24th of February 2025 and was arraigned before the Magistrate Court facing criminal charges of contravening s 164 of the Criminal Law Code. It was and still is being alleged that Blessed Mhlanga contravened s 164 of the Code by allegedly providing a live broadcast of a press conference held by Blessed Geza.

It was the State's case that Blessed Geza made statements inciting violence against the President of the Republic of Zimbabwe and any other person he perceived to be close or associated with the President. The State alleged that Blessed Mhlanga, by means of some computer or information system, video recorded the press statement of Blessed Geza and made the data message available to members of the public by transmitting, broadcasting or distributing it through the applicant's YouTube channel intending to incite members of the public to commit acts of violence against the President of Zimbabwe and any other person perceived to be close to or associated with the President. The broadcasted message included the following message:

> "It is clear that Mnangagwa has failed. He is not fit to run this country and his time to go is now. We ask him to go peacefully. If he refuses to take heed of this advice, we have no option but to ask the people of Zimbabwe to deal with a rogue President ..... 1f you think it's a joke it's your fault, resign peacefully."

After the arrest and placement on remand of Blessed Mhlanga, the fourth respondent made the decision to also charge and prosecute the applicant together with Blessed Mhlanga for allegedly contravening s 164 of the Criminal Code by providing a live broadcast of a press conference held by Blessed Geza. As a result, the applicant was summoned to Harare Central Police Station where a warned and cautioned statement was recorded, after which it attended at the Magistrates Court for initial remand on the 5th of May 2025. The applicant made an application

challenging its further remand which application was dismissed. The applicant then made an application for referral to the Constitutional Court in terms of s 175(4) of the Constitution for a determination of the constitutional validity of s 164 of the Criminal Law Code.

It argued that its core function of news gathering and dissemination of information is constitutionally protected and entrenched as a human right in ss 61 and 62 of the Constitution which provide for the right to freedom of expression and freedom of the media and the right to access information respectively. It argued that, as such, media houses are constitutionally allowed to freely gather and report news to the public, providing live coverage and analysis of breaking news through their various platforms. It argued that s 164 of the Code contradicted the rights to freedom of expression and freedom of the media which are constitutionally protected in ss 61 and 62 of the Constitution.

In response to the application, the respondent argued that the application was frivolous and vexatious and was only meant to avoid trial. It also argued that there are other remedies available to the applicant such as exception, review or pleading not guilty to the charge.

The Magistrates Court, the court *a quo*, dismissed the application on the basis that it was frivolous and vexatious. The court *a quo,* in dismissing the application, made the finding that the same constitutional provision which the applicant alludes to as being violated by s 164 of the Criminal Code contains limitations to the right to freedom of expression and the media. The court further held that raising a question calling upon the Constitutional Court to interpret what the Constitution has already provided for in s 61(5) *vis-à-vis* s 164 of the Criminal Law Code made

the request frivolous and vexatious. The Court thus found that the application lacked merit as the same constitutional provisions are the ones anchoring the cited section of the Criminal Law Code.

Disgruntled with the finding of the Magistrate's Court, the applicant has approached this Court seeking direct access on the basis that the Magistrate's decision to refuse its request to refer the constitutional issues it raised was wrong as the request was neither frivolous nor vexatious. The applicant further contends that its rights have been infringed by the refusal to refer the constitutional issue it had raised to this Court, as it is now being prosecuted for an offence which is unconstitutional, despite it being settled law that no person can be tried and convicted under an unconstitutional law. It also contends that such a refusal took away the protection afforded to the applicant in terms of the Constitution, which provides an avenue through which a prosecution premised on an unconstitutional law is addressed.

Secondly, it contends that the right to protection of the law enshrined in s 56(1) of the Constitution does not allow a person to be prosecuted in terms of a law which is unconstitutional. In respect of s 69(3), the applicant contends that a wrongful refusal to refer constitutional issues to the Constitutional Court constitutes, without more, a blatant infringement of the applicant's right to access the Courts. The applicant states that the intended application enjoys excellent prospects of success. In support of this averment, the applicant reiterates that it is its belief that the refusal by the Magistrate to refer the matter was wrongful, as no reasonable Magistrate would have refused its request to refer the Constitutional issue to this Court. Further, the applicant states that, as an appropriate relief, after a declaration of rights, it will seek that the question it sought to refer, that

is, the constitutionality of s 164 of the Code, be determined by this Court. The applicant states that there are reasonable prospects that it will be decided in the applicant's favour.

The fourth respondent, in opposition, contends that the rights bestowed on the applicant and other media houses in Zimbabwe to freely gather and report news to the public through various media outlets, including digital platforms, as enshrined in the Constitution, are not absolute but have limitations in themselves. The fourth respondent further states that the Constitution thus requires the applicant and any other media houses to exercise their constitutional right with restraint in order to avoid causing alarm, despondency and anarchy in the country.

The fourth respondent also states that the decision of the Magistrate to refuse the applicant's request for referral was properly made and cannot be faulted in the circumstances. The fourth respondent, therefore, states that the intended application enjoys no reasonable prospects of success as the reasoning by the Magistrate in dismissing the application is beyond reproach and sound at law. Further, it is argued that the constitutionality of s 164 of the Criminal Law Code was properly articulated and found to align with the limitation clause in s 61(5) of the Constitution and, as such, a challenge to the constitutionality of s 164 of the Code is an attack on the Constitution itself and therefore unmeritorious. The fourth respondent, therefore, states that the applicant has not made a proper case for direct access to the Constitutional Court and it is not in the interests of justice to allow the application and as such prays for the dismissal of the application.

SUBMISSIONS MADE BEFORE THIS COURT

Mr *Sitotombe* submitted that the right under s 61 of the Constitution guarantees every person the right to freedom of expression and includes the freedom to seek, receive and

communicate information. He further stated that s 61(2) further grants freedom of the media. As a follow-up question, the Court enquired of counsel the purpose of s 61(5). It was Mr *Sitotombe*'s response that s 61(5) provides what is excluded under freedom of expression and freedom of the media. The Court further asked counsel whether a person who incites violence can still rely on the right as provided under s 61 of the Constitution. After an exchange with the Court, counsel conceded that if one incites violence, one cannot rely on the protection under s 61.

The Court further asked Mr *Sitotombe* as to how someone who has committed an offence in terms of s 164 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] can rely on s 61 of the Constitution. In response, counsel submitted that the mere mention of incitement does not mean the impugned section is protected by s 61 of the Constitution. He submitted that the court still needs to examine whether s 164 of the Criminal Law Code is in line with s 61 of the Constitution. Quizzed further on how s 164 of the Criminal Law Code can be challenged if it is the Constitution itself that has qualified the general right through limitations under s 61(5), counsel responded that that alone does not qualify every law that involves the incitement to violence as constitutional.

Mr *Sitotombe* submitted that the ruling by the Magistrate did not consider the arguments that were put forward by the applicant and the fourth respondent in support and in opposition of the application for referral. He submitted that the Magistrate purported to make a ruling based on the constitutional issue itself and not the request for referral. It was thus Mr *Sitotombe*'s submission that the Magistrate exceeded her jurisdiction. The Court put it to counsel that any court dealing with a matter has discretion and the Magistrate used that discretion in examining the allegation *vis-à-vis* s 61 of the Constitution. To this, Mr *Sitotombe* submitted that

this Court has narrowed down the matters that should be considered in an application for referral and the Magistrate is not supposed to go outside what ought to be considered. Counsel also submitted that the limitations under s 61(5) of the Constitution cannot be looked at in isolation but have to be looked at together with s 86 of the Constitution. The Court highlighted to counsel that s 61 is not a law of general application but the Constitution itself, hence s 86 does not apply. Mr *Sitotombe* maintained his position that a limitation has to be justifiable.

Per contra, Mr *Chimombe,* for the first, second and third respondents, submitted that s 61(5) of the Constitution is clear and does not protect incitement to violence. He further submitted that s 164 of the Criminal Law Code criminalises that which has already been excluded under s 61(5) of the Constitution. Mr *Chimombe* further submitted that the question of whether the applicant made a broadcast with the intention to incite violence is a question for the Magistrates Court and not for this Court. He thus submitted that the decision of the Magistrate cannot be faulted and prayed for the dismissal of the application with no order as to costs. The Court asked counsel to comment on the submission by counsel for the applicant that the Magistrate ought to have considered the application in terms of s 86 of the Constitution. It was Mr *Chimombe*'s response that the constitutionality of s 164 of the Criminal Law Code should be looked at *vis-à-vis* s 61(5) of the Constitution. He further submitted that the limitation in s 86 does not arise in this matter because s 61(5) clearly provides what is excluded from the general right.

Mr *Mutsonziwa,* for the fourth respondent, submitted that the intended application has no prospects of success. He submitted that s 164 of the Criminal Law Code is not vague or general but is very specific. It was his submission that s 61(5) gives a clear limitation to the right and s 164 of the Criminal Law Code only expresses what has been excluded under s 61(5). Mr *Mutsonziwa*

also submitted that in this case, s 86 of the Constitution does not apply as s 61(5) itself provides the derogation and as such the derogation from the right is contained in the definition of the right.

THE LAW

The principles governing direct access to this Court are clearly defined. Not every individual with a constitutional concern has an automatic right to petition this Court. Rather, direct access is a discretionary remedy, only granted when the requirements stipulated in this Court's rules are fulfilled. The requirements to be met in an application of this nature are set out under r 26(4) as follows:

> "(4) An application in terms of subrule (2) shall be filed with the Registrar and served on all parties with a direct and substantial interest in the relief claimed and shall set out –
> (a) the grounds on which it is contended that it is in the interests of justice that an order for direct access be granted; and
> (b) the nature of the relief sought and the grounds upon which such relief is based; and
> (c) whether the matter can be dealt with by the Court without the hearing of oral evidence or, if it cannot, how such evidence should be adduced and any conflict of facts resolved."

What constitutes "interests of justice" is spelt out in r 26(9) as follows:

> "(9) In determining whether or not it is in the interests of justice for a matter to be brought directly to the Court, the Court or Judge may, in addition to any other relevant consideration, take the following into account –
> (a) the prospects of success if direct access is granted;
> (b) whether the applicant has any other remedy available to him or her;
> (c) whether there are disputes of fact in the matter"

The meaning of "interests of justice" has been further elucidated through various court decisions and legal texts, providing additional guidance on its interpretation and application. In the case of *Fairclot Investments (Private) Limited* v *Augur Investments OA & Ors* CCZ 16/24 at pp. 15-16, it was explained as follows:

> "In terms of sub r 8 of r 21 of the Rules, in considering whether or not it is in the interest of justice for a matter to be brought directly to the Court, the Court or a judge may, in addition to any other relevant consideration, take into account factors such as the prospects of success if direct access is granted, whether the applicant has any other remedy available to him or her and whether there are disputes of fact in the matter. Though not directly relevant for present purposes, the Rules also envisage a consideration of other relevant matters that may have a bearing on the matter. In previously decided cases, these have been stated to include the importance of the matter and need for certainty in the law, whether the matter is urgent, whether the doctrines of ripeness, subsidiarity and constitutional avoidance apply (this is intertwined with the consideration of alternative remedies just referred to) and whether, in the particular circumstances of the case, it is desirable for this Court to sit both as a court of first and last instance, in other words, to hear the matter without the benefit of the views of other courts subordinate to it. … A further relevant consideration relates to the need for the intended application to raise a constitutional matter, for, in the absence of such a constitutional matter, the jurisdiction of the court cannot be triggered. In other words, in the absence of a constitutional matter, the question of the interests of justice would not arise."

Currie I and de Waal J in *The Bill of Rights Handbook,* 6th ed, Juta & Co (Pty) Ltd, Cape Town, 2013, at p. 128, explained the concept of 'interests of justice' as follows:

> "Direct access is an extraordinary procedure that has been granted by the Constitutional Court in only a handful of cases. … The Constitutional Court is the highest court on all constitutional matters. If constitutional matters could be brought directly to it as a matter of course, the Constitutional Court could be called upon to deal with disputed facts on which evidence might be necessary, to decide constitutional issues which are not decisive of the litigation and which might prove to be of purely academic interest, and to hear cases without the benefit of the views of other courts having constitutional jurisdiction. Moreover, it is not ordinarily in the interests of justice for a court to sit as a court of first and last instance, in which matters are decided without there being any possibility of appealing against the decision given."

In essence, the considerations stipulated in rr 26(4) and 26(9) are designed to function as a sieve, ensuring that only potentially meritorious applications for direct access are granted

while preventing frivolous or abusive recourse to this remedy. See *Lytton Investments (Pvt) Ltd* v *Standard Chartered Bank & Anor* 2018(2) ZLR 743 (CC) at p. 751.

As will be shown below, the application for direct access in this matter has no prospects of success and it is not in the interest of justice to grant it as the applicant has an alternative remedy of advancing *a quo* its defence to the charge.

Further to the above, direct access will not easily be granted where it has the effect of interfering with unterminated proceedings of lower courts. Such interference will only be allowed where there is gross irregularity or a wrong decision by the lower court that will prejudice the rights of a litigant or accused person and which irregularity or wrong decision cannot be corrected by any other means. See *Attorney General* v *Makamba* 2005 (2) ZLR 54 (S)

The above position was further explained in the case of *Mamombe & Anor* v *Mushure N.O & Anor* CCZ 04/22 at p. 4- 6 as follows:

> "This is so because the power to interfere with the unterminated proceedings of a lower court either permanently or as affording interlocutory relief, is nothing but an exercise of review jurisdiction by the superior court over the proceedings or decisions of the lower court. The authorities clearly establish the position at law that proceedings in a lower court or its decision are only interfered with if there is a gross irregularity in the proceedings or the interlocutory decision is clearly wrong.… I venture to suggest that where the matter is intended to be brought before this Court as a court of first instance, as *in casu*, this Court must only proceed to interfere with the unterminated proceedings of a lower court where it intends, in the interests of justice, to grant direct access in the matter and determine the matter itself. Put differently, this Court must only interfere with unterminated proceedings in the lower courts where it has jurisdiction in the matter."

The question of whether or not the instant application for direct access should be granted will therefore be considered in line with the aforementioned guidelines.

WHETHER THERE WAS A VIOLATION OF APPLICANT'S RIGHTS

The applicant asserts that there is a constitutional issue properly before this Court, arguing that the Magistrate's Court erred in refusing its request to refer the constitutional question, as that request was neither frivolous nor vexatious. It argues that as a result of the court's conduct its right to general protection of the law in terms of s 56 was violated. It submits that the s 56(1) right protects two separate rights being the right to equal protection of the law and the right to general protection of the law as the Constitution does not allow a person to be prosecuted in terms of a law which is unconstitutional. It further contends that its right to access the courts in terms of s 69 (3) of the Constitution was violated and argues that a wrongful refusal to refer constitutional issues to the Constitutional Court constitute, without more, a blatant infringement of its right to access the Courts.

The basic assumption in the above propositions is that s 164 of the Code is *prima facie* unconstitutional when in fact the opposite is true as will be shown below. Thus, the court *a quo* properly assessed the request to refer and found it to be frivolous and vexatious in the circumstances. What the applicant has sought to place before this Court, therefore, is not a constitutional matter but a defence to the charge which should properly be dealt with *a quo.*

As to what constitutes a proper constitutional matter is clearly set out in Section 332 of the Constitution and case law developed in terms of it, for example: *Moyo v Chacha & Ors* 2017(2) ZLR 142 (CC).

Before the trial court, the applicant contended that s 164 of the Criminal Law Code is unconstitutional to the extent that it criminalises the dissemination of information in the exercise of one's right to media freedom. While s 61 of the Constitution clearly entrenches freedom of expression and freedom of the media, the very same provisions therein contain internal derogations from the general right itself. In this context, s 164 of the Code is crafted following structures already delineated in the definition of the right itself.

Section 61 of the Constitution that gives the right to freedom of expression and freedom of the media also restricts that right through an internal derogation. Subsection (1) of the section provides as follows:

> **"Freedom of expression and freedom of the media**
> (1) Every person has the right to freedom of expression, which includes—
>
> (a) freedom to seek, receive and communicate ideas and other information;
>
> (b) freedom of artistic expression and scientific research and creativity; and
>
> (c) academic freedom."

However, s 61 (5) immediately provides a derogation, thus:

> "(5) Freedom of expression and freedom of the media exclude—
> (a) incitement to violence;
>
> (b) advocacy of hatred or hate speech;
>
> (c) malicious injury to a person's reputation or dignity; or
>
> (d) malicious or unwarranted breach of a person's right to privacy."

Section 164 of the Criminal Law Code provides as follows:

> **"164 Transmission of data message inciting violence or damage to property**
> Any person who unlawfully by means of a computer or information system makes available, transmits, broad-casts or distributes a data message to any person, group of persons or to the public with intent to incite such persons to commit acts of violence against any person or persons or to cause damage to any property shall be guilty of an offence and liable to a fine not exceeding level 10 or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment."

Our courts have consistently emphasised that the right to freedom of expression and of the media is not absolute but is expressly subject to limitations prescribed by law. (see *Madanhire & Anor* v *A-G* 2014 (1) ZLR 719 (CC)). Therefore, the law on the face of it is clear. In light of the foregoing, this Court cannot properly embark on a determination of whether s 164 of the Code violates s 61 of the Constitution when, under s 61(5) of the Constitution itself, freedom of expression and freedom of the media exclude conduct that amounts to incitement to public violence.

In this application, the applicant maintains that its conduct did not amount to the incitement of violence, as it was simply exercising its constitutional right to freedom of the media. However, this Court cannot assess whether the applicant's conduct constituted incitement, as that determination lies within the exclusive domain of the Magistrate's Court. The proper function of this Court at this stage is to determine whether a genuine constitutional issue has been placed before it. In my view, there is none. The applicant essentially asks this Court to examine provisions that are already expressly set out in the Constitution.

Therefore, this is a matter that could have been resolved without resorting to the constitutional route. All the applicant had to do before the Magistrate Court was to defend its conduct on the merits and demonstrate that its actions did not amount to inciting public violence. The applicant contends that it was merely live-streaming Blessed Geza's address and could not have anticipated what he would say. That is the essence of the defence it should have advanced in the lower court rather than seeking to resolve the matter via a constitutional challenge.

In the case of *Chawira & Ors* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* 2017 (1) ZLR 117 (CC) at p. 123C, this Court held that,

> "… in the normal run of things, courts are generally loathe to determine a constitutional issue in the face of alternative remedies."

In this regard, the observations made in *Chavunduka & Anor* v *Commissioner of Police & Anor* 2000 (1) ZLR 552 (S) at 557G-H are pertinent to this case as the Court held:

> "In assessing the likely consequences of the publication it is necessary to consider the actual circumstances and the actual persons concerned, rather than the hypothetical reasonable man. It must be shown that the publication was not merely theoretically but in practical effect likely to cause fear, alarm or despondency among the public. The accused person may raise as a defence that the circumstances giving rise to the likelihood were unknown to him and could not reasonably have been anticipated (see *R v Brind* 1966 RLR 565 (A) at 577D–E, 578A–B and 579E–G,1967 (1) SA 616 (ZAD) at 625D, 625 *in fine – 626A, and 627B–C).*"

As demonstrated above, in matters of this nature, the defendant's appropriate course is simply to raise a defence to the charge of incitement to public violence in the trial court rather than pursuing a constitutional challenge.

Therefore, no violation of applicant's rights under ss 56 and/or 69 (3) of the Constitution have been proven and the application stands to be dismissed.

COSTS

It is generally the practice of this Court not to award costs in constitutional matters. However, the Court retains a discretion to depart from that principle in exceptional circumstances. While the applicant has undoubtedly delayed the finalisation of unterminated proceedings, I am not persuaded that this delay, without more, constitutes such an exceptional circumstance as to justify an award of costs. It must be borne in mind that awarding costs in constitutional litigation may have a chilling effect on litigants, discouraging them from pursuing what they genuinely believe to be legitimate constitutional relief. In the circumstances, the Court will not make an order of costs against the applicant.

DISPOSITION

Direct access is an extraordinary remedy that will not be lightly granted. In this case, the applicant failed to demonstrate any constitutional violation of the right to protection of the law or access to the courts as the trial court properly assessed the request for referral as frivolous and vexatious. The application has no prospects of success should direct access be granted as the challenge to the constitutional validity of s 164 of the Code is based on a flawed understanding of the Constitution's s 61 scheme of a right clearly defined with internal derogations. Moreover, the applicant does have an obvious alternative remedy in the form of a defence to the charge in proceedings in the trial court which is the appropriate forum to resolve the dispute and this Court should be particularly slow in interfering with such unterminated proceedings. It is, therefore, not

in the interests of justice to grant direct access in this application.

In the result, it is ordered as follows:

"The application be and is hereby dismissed with no order as to costs"

GARWE JCC **:** I agree

GOWORA JCC **:** I agree

Mtetwa & Nyambirai, applicant's Legal Practitioners

Attorney General's Office, first, second third respondents' legal practitioners

The Prosecutor General's Office, fourth respondent's Legal Practitioners